

Authority Personal Data
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Confidential/Registered
Ambitious People Group B.V.
[CONFIDENTIAL] Director
Jozef Israëlskade 48 E
1072 SB AMSTERDAM
Date
July 30, 2020
Our reference
z2019-28837
Contact person
[CONFIDENTIAL]
Subject
Decision to impose an administrative fine

Dear [CONFIDENTIAL],

The Authority Personal Data (hereinafter: AP) has decided to impose an administrative fine of € 6,000 on Ambitious People Group B.V. (hereinafter: APG). The AP is of the opinion that APG has not complied without unreasonable delay, at least not within one month after receiving a request from three different parties for the deletion of personal data. APG has thereby violated Article 17, paragraph 1, in conjunction with Article 12, paragraph 3, of the General Data Protection Regulation (hereinafter: GDPR).

The decision is explained below. Chapter 1 contains the relevant facts and the procedural history. Chapter 2 describes the legal framework. Chapter 3 follows with the assessment of the AP, after which Chapter 4 justifies the amount of the administrative fine. Finally, Chapter 5 contains the ruling and the remedies clause.

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1. Facts and procedural history

APG is a private limited company statutorily established at Jozef Israëlskade 48E, (1072 SB) in Amsterdam. APG was founded on August 2, 2007, and is registered in the Chamber of Commerce under number 34278390. According to its privacy statement, APG focuses on recruiting.

On November 30, 2018, the AP received a complaint from two different parties regarding a possible violation of the GDPR by APG. From the complaints, it follows that the parties believe that APG has wrongly failed to respond to deletion requests submitted by them under the GDPR. On March 20, 2019, the AP received a similar complaint from a third party. The complainants are referred to hereinafter as party 1, 2, and 3.

In response to these complaints, the AP initiated an investigation to assess whether APG acted in accordance with the rules set out in the GDPR regarding the right to erasure ("right to be forgotten") and in the Personal Data Protection Act (Wbp) regarding the right to deletion. In this context, the AP sent three information requests to APG, respectively on August 6, August 30, and November 11, 2019,

to which APG responded on August 21, September 16, and November 25, 2019. The findings of the investigation are included in the report "Investigation into the right to erasure ('right to be forgotten') by Ambitious People Group B.V." which was established on December 3, 2019.

By letter dated January 8, 2020, the AP sent APG a notice of enforcement along with the aforementioned investigation report and the underlying documentation, whereby APG was also given the opportunity to express its views. On February 5, 2020, APG submitted its written views.

Based on the report with findings, the underlying documentation, and the views of APG, the AP establishes the following relevant facts.

APG provides recruitment services and matches professionals with suitable positions. APG operates under five so-called labels, each targeting a specific market, namely: LMH, SAM, Four Life Sciences, Ardekey, and Five Finance. Data of candidates are stored in the various databases belonging to the labels. Providing recruitment services includes approaching those individuals with relevant vacancies that match their profile. This is done based on a

- 1 Extract from the Chamber of Commerce, Annex 1 to the investigation report.
- 2 Privacy statement, Annex 14 to the investigation report.
- 3 Complaint form party 1, Annex 2 to the investigation report; Complaint form party 2, Annex 3 to the investigation report.
- 4 Complaint form party 3, Annex 4 to the investigation report.
- 5 Information requests, Annexes 5, 7, and 12 to the investigation report.
- 6 Responses from APG, Annexes 6, 8, and 13 to the investigation report.
- 7 Privacy statement, Annex 14 to the investigation report.

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agreement which, as APG points out, comes into effect when the parties register with APG via the website.⁸

APG has indicated that in execution of the agreements with the aforementioned three parties, it has included data of these parties, namely: name, address, place of residence (NAW), email address, phone number, date of birth, and the curriculum vitae containing information about education and work experience, in a database. These three parties have submitted a request to APG to delete their personal data from the database. Below is an overview of the correspondence – as far as relevant here – regarding these requests between the parties and APG.

Party 19

Party 1 was approached by APG (SAM Recruitment) via email on November 28, 2018, at 17:33 regarding a vacant position.

On November 28, 2018, at 18:35, party 1 responded via email stating that he is making a final request for his data to be deleted in accordance with the GDPR.

On January 10, 2019, at 18:59, party 1 was again approached via email with various positions.

APG has confirmed that it received the request from party 1 and submitted an overview of correspondence with the party to the AP. The investigation by APG revealed that on the date of receipt of the letter from the AP dated August 6, 2019, the following personal data of party 1 was stored in the database of SAM Recruitment: NAW, email address, phone number, date of birth, curriculum vitae with information about education and work experience. Furthermore, APG indicated that party 1 first expressed on November 15, 2018, that he wanted his data to be deleted in accordance with the GDPR.¹⁰

Party 211

On March 26, 2018, at 17:28, APG (LMH Engineering) approached party 2, pointing out various vacant positions.

On March 26, 2018, at 18:11, party 2 responded to this email stating that he has requested multiple times to be removed from the database and requests that his account be deleted from the database.

On November 30, 2018, at 16:49, party 2 was again approached via email with a job vacancy.

On November 30, 2018, at 20:10, party 2 responded to this email stating that he has requested multiple times to be removed from the database and requests that his account be deleted from the database.

APG has confirmed that it received the request from party 2 and submitted an overview of correspondence with the party to the AP.¹² The investigation by APG revealed that on the date of receipt of the letter from the AP dated August 6, 2019, the following personal data of party 2 was stored in the database of LMH

8 Response from APG to information request of November 11, 2019, appendix 13 to the investigation report.

9 Email correspondence party 1, appendix 9 to the investigation report.

10 Response from APG dated August 20, 2019, appendix 6 to the investigation report.

11 Email correspondence party 2, appendix 10 to the investigation report.

12 Response from APG dated August 20, 2019, appendix 6 to the investigation report.

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Engineering the following personal data was stored: name, address, email address, phone number, date of birth, curriculum vitae with information about education and work experience. Furthermore, APG indicated that the individual received a third email on February 12, 2019, to which the individual responded.

Individual 3

On October 17, 2018, at 18:18, APG (Five Finance recruitment) approached individual 3 via an email, drawing attention to a vacancy.

On October 17, 2018, at 18:37, individual 3 requested in response to this email that his data be immediately deleted, including for LMH.

On October 19, 2018, at 09:02, APG informed individual 3 that they are a sister company of LMH (part of the same group) and that it was a one-time email.

On October 19, 2018, at 09:07, individual 3 asked in response to this email whether he would be removed from the database.

On October 19, 2018, at 09:11, APG confirmed this to individual 3.

On March 20, 2019, at 11:03, and on August 1, 2019, at 18:47, individual 3 was approached again by email by APG (LMH Engineering) regarding a vacancy, respectively with a request to call back.

APG has confirmed that it received the request from individual 3 and submitted an overview of correspondence with the individual to the AP.¹⁴ APG indicated that the data of individual 3, after the request for deletion, was removed from the database of Five Finance but not from that of LMH Engineering. The investigation by APG revealed that on the date of receipt of the letter from the AP dated August 6, 2019, the following personal data of individual 3 was stored in the database of LMH Engineering: name, address, email address, phone number, date of birth, curriculum vitae with information about education and work experience.

In response to the information request from the AP dated August 30, 2019¹⁵, APG indicated and demonstrated that the personal data of all three individuals was deleted on September 11, 2019, of which the individuals were informed by APG via email on September 12, 2019.¹⁶

2. Legal framework

2.1 Scope of the GDPR

Pursuant to Article 2, paragraph 1, of the GDPR, this regulation applies to the wholly or partially automated processing, as well as to the processing of personal data that is included in a file or intended to be included therein.

13 Email correspondence of individual 3, appendix 11 to the investigation report.

14 Response from APG dated August 20, 2019, appendix 6 to the investigation report.

15 Letter from AP, appendix 7 to the investigation report.

16 Response from APG, appendix 8 to the investigation report.

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Pursuant to Article 4 of the GDPR, the following definitions apply:

1. "Personal data": any information relating to an identified or identifiable natural person ("the data subject"); [...].
2. "Processing": an operation or a set of operations performed on personal data or on a set of personal data, whether or not by automated means [...].
7. "Controller": a [...] legal person that, alone or jointly with others, determines the purposes and means of the processing of personal data; [...].

2.2 Right to Erasure

According to Article 12, paragraph 3, of the GDPR, the controller shall provide the data subject without undue delay and in any event within one month of receipt of the request under Articles 15 to 22 information about the action taken in response to the request. Depending on the complexity of the requests and the number of requests, this period may be extended by a further two months if necessary. The controller shall inform the data subject of such an extension within one month of receiving the request. When the data subject submits their request electronically, the information shall be provided electronically where possible, unless the data subject requests otherwise.

According to Article 17, paragraph 1, of the GDPR, the data subject has the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller is obliged to erase personal data without undue delay when one of the following applies:

- a) the personal data are no longer necessary for the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6, paragraph 1, point a), or Article 9, paragraph 2, point a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased to comply with a legal obligation under Union law or the law of a Member State to which the controller is subject;
- f) the personal data have been collected in relation to the offer of services of the information society as referred to in Article 8, paragraph 1.

According to Recital 65 of the GDPR, a data subject should have the right to have personal data concerning them rectified and should have a "right to be forgotten" when the retention of such data infringes this regulation or Union law or the law of a Member State applicable to the controller. More specifically, data subjects should have the right to have their personal data erased and not to have it

further processed when the personal data are no longer necessary for the purposes for which they were collected or otherwise processed, when the data subjects have withdrawn their consent or objected to the processing of their personal data, or when the processing of their personal data is otherwise not in compliance with this regulation. [...].

It is noted that, as indicated in Recital 59 of the GDPR, arrangements should be in place to enable the data subject to exercise their rights under the GDPR more easily, such as mechanisms to request access to and rectification or erasure of personal data and, where applicable, to obtain these free of charge, as well as to exercise the right to object. The controller should also provide means to submit requests electronically, especially when personal data are processed electronically. The controller should be obliged to respond without undue delay and at the latest within one month to a request from the data subject, and to provide reasons for any intended refusal to comply with such requests.

3. Assessment

3.1 Introduction

The following assessment is based on the requests of data subjects that fall under the scope of the GDPR.

3.2 Processing of Personal Data and Material Scope of the GDPR

As mentioned, APG operates under five labels: LMH, SAM, Four Life Sciences, Ardekay, and Five Finance and has registered data in its database(s) concerning data subjects 1, 2, and 3 under a contract for the provision of recruitment services.

In response to the request from the AP dated August 6, 2019, APG checked which data of the data subjects were stored in its database. It was found that data of data subject 1 were stored in the SAM Recruitment database and data of data subjects 2 and 3 were stored in the LMH Engineering database. In all three cases, the following data were involved: name, address, email address, phone number, date of birth, and curriculum vitae containing information about education and work experience.¹⁷

The data stored in APG's databases make the data subjects directly identifiable. Therefore, these data qualify as personal data within the meaning of Article 4, introductory phrase, and point 1, of the GDPR.

¹⁷ Response from APG dated August 20, 2019, Annex 6 to the research report.

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Pursuant to Article 2, paragraph 1, and Article 3, paragraph 1, of the GDPR, the GDPR applies to the wholly or partially automated processing of personal data in the context of the activities of a branch of a data controller or a processor in the European Union.

The relevant personal data has been recorded and digitally stored in the databases of the labels SAM Recruitment (data subject 1) and LMH Engineering (data subjects 2 and 3). Furthermore, the email addresses and names of the data subjects were used and consulted by employees of APG to contact the data subjects via email regarding job vacancies or to get in touch with them. This constitutes automated processing of personal data.

The AP concludes that there is processing of personal data to which the GDPR applies according to the aforementioned provisions.

3.3 Data Controller

In the context of the question of who can be regarded as the data controller(s) as referred to in Article 4, introductory sentence, and under 7, of the GDPR, it is decisive who determines the purpose of and

the means for the processing of personal data.

The privacy statement of APG18 describes the following:

“WHO IS YOUR DATA CONTROLLER?

Ambitious People Group works with five (5) brands, that each focus on a specific segment of the recruitment sector (the “Brands”):

- LMH
- SAM
- Four Life Sciences
- Ardekay
- Five Finance

Each Brand encompasses several legal entities, incorporated under various jurisdictions. For your convenience, whenever we refer to one of these Brands in our Privacy Statement, we mean all legal entities that form that Brand.

The parent company of the Brands is Ambitious People Group B.V., a private company with limited liability incorporated under the laws of the Netherlands, having its registered seat in Amsterdam and its office in (1072 SB) Amsterdam at Jozef Israëlskade 48 E, the Netherlands, registered with the commercial register of the Dutch Chamber of Commerce under number 34278390.

18 Privacy statement, appendix 14 to the investigation report.

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Why and how your Personal Data is processed, is ultimately determined by Ambitious People Group B.V. Therefore, we consider Ambitious People Group B.V. to be the sole data controller with respect to your Personal Data. For the remainder of the Privacy Statement, we will refer to Ambitious People Group B.V. as “APG”.

APG shares your Personal Data with the Brands of APG in the following manner. To increase the chance of a match between you and a suitable job, APG has created Brands dedicated to specific sectors. Therefore, if you only apply for a Brand, your Personal Data is stored in the database of that Brand. However, it is possible that vacancies available at other Brands provide an equally suitable or even better match with your profile. For that reason, the databases of each Brand are accessible to employees of other Brands. APG’s employees are instructed to only source the databases of other Brands in case of ‘cross Brand vacancies’: vacancies that fit the profile of more than one Brand.”

The AP notes that the privacy statements of SAM, Five Finance, and LMH contain the same passage:19

“[...] Why and how your Personal Data is processed, is ultimately determined by Ambitious People Group B.V. Therefore, we consider Ambitious People Group B.V. to be the sole data controller with respect to your Personal Data. For the remainder of the Privacy Statement, we will refer to Ambitious People Group B.V. as “APG”.

According to its privacy statement, APG is the data controller. The means for the processing of personal data in this case concerns the registration of personal data in the (various) database(s) of APG.

APG confirms in its response to the information request from the AP dated November 11, 2019, that the purpose of processing the personal data (contact details, email address, phone number, date of birth, and curriculum vitae containing information about education and work experience) of the three data subjects by APG was to approach them with relevant job vacancies that matched their profile.

This was done based on an agreement between the data subject and APG that was established because the data subject registered with APG via the website, according to APG.²⁰

Furthermore, it is important to note that – as APG also indicates in its response of August 20, 2019, to the AP²¹ – requests for deletion can be centrally directed to privacy@ambitiouspeople.com²² and that APG instructs its employees regarding handling requests related to the GDPR, and APG is the entity that has taken measures in response to the communications from the AP.

The requests from the three data subjects did not arrive centrally at APG via the email address mentioned in the privacy statement, but with the recruiters themselves. APG has decided to adjust the internal procedure accordingly.

19 Privacy statement, appendix 14 to the investigation report.

20 Response from APG to the information request of November 11, 2019, appendix 13 to the investigation report.

21 Response from APG of August 20, 2019, appendix 6 to the investigation report.

22 See also Privacy statement, appendix 14 to the investigation report.

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to adjust that requests received by recruiters themselves will henceforth also be forwarded to the privacy inbox to be handled centrally from there. To support this, APG has submitted its revised manual.

In light of the above, APG has control over how the rights of data subjects and the processing of personal data of data subjects are handled within APG and its labels, and it determines the purpose and means for this processing.

APG therefore qualifies as the data controller as referred to in Article 4, introductory phrase, and under 7, of the GDPR.

3.4 Violation regarding the right to erasure of data (“right to be forgotten”)

Pursuant to Article 17, paragraph 1, of the GDPR, the data subject has the right to obtain the erasure of personal data concerning him or her without undue delay, and the data controller is obliged to erase personal data without undue delay when the personal data are no longer necessary for the purposes for which they were collected or otherwise processed (paragraph 1, under a).

According to Article 12, paragraph 3, of the GDPR, the data controller shall provide the data subject without delay and in any event within one month of receiving a request for erasure information about the action taken in response to the request.

It has been established that the three data subjects have all requested their data to be removed from the relevant database of APG. Data subject 1 requested on November 15 and 28, 2018, to have his data deleted, data subject 2 on March 26, 2018, and on November 30, 2018, and data subject 3 on October 17, 2018. Furthermore, it has been found that the personal data of the three data subjects were still stored in the database of SAM Recruitment (data subject 1) and of LMH Engineering (data subjects 2 and 3) on the date of receipt of the letter from the AP dated August 6, 2019. On September 11, 2019, the personal data of the three data subjects were deleted by APG. On September 12, 2019, APG informed the data subjects about this via email. APG noted that it had already placed the relevant personal data 'in quarantine' after notification from the AP and that these individuals could no longer be approached pending that investigation. APG believed that, in the context of the investigation by the AP, the personal data in question should not be deleted immediately. At the moment the AP indicated that this should be done – despite the investigation – APG complied immediately.

Now that the data subjects have requested APG to delete their personal data from the database and

thereby indicated that they no longer wish to use the services of APG, it is judged

23 According to APG, data subject 1 first indicated on November 15, 2018, that he wanted his data to be deleted in accordance with the GDPR. See Appendix 6 to the investigation report.

24 Response from APG, Appendix 9 to the investigation report.

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the AP that their personal data were no longer necessary for the purpose for which they were collected or otherwise processed, namely to provide and approach the data subjects with relevant job vacancies.

****Views of APG and response from AP****

APG has been able to ascertain that the three data subjects did not submit a request via the designated privacy address, but rather directed their request to the recruiter who approached them for a vacancy. Although APG has a policy for such situations, it has regrettably found that these requests were not adequately addressed by the involved recruiter(s). As a result, the individuals in question were still approached with job vacancies even after their request. APG has previously indicated to the AP that it is particularly unfortunate that these three requests were not handled and executed in a timely manner. However, APG has also explained that this was a human error. While APG believes that it had implemented an adequate policy for handling requests from data subjects, considering the requirements that may be imposed under the GDPR for such a policy, the letter from the AP has prompted APG to critically review its policy. As APG has previously explained, it has since instructed its employees to forward all incoming requests without exception to the privacy email address for further processing. Furthermore, a Business Intelligence department has been established that will focus on developing and implementing (automated) processes aimed at further reducing the likelihood of human errors. APG is aware that failing to (adequately) comply with the requests of the three data subjects may be considered a violation.

The AP notes the following in this regard. Under Article 17, paragraph 1, in conjunction with Article 12, paragraph 3, of the GDPR, APG should have provided information about the action taken on the request without undue delay, and in any case within one month of receiving the request from the data subjects, and should also have complied with the request by proceeding to erase the personal data within this timeframe.

The fact that the data subjects did not submit their request via the designated address specified in the privacy statement, but rather directed it to the recruiter who approached them for a vacancy, does not alter this obligation and does not diminish the seriousness of the violation. APG is responsible for the actions of its employees who, in the case of the data subjects, did not handle the requests according to the policy established by APG for this purpose and did not comply with the requests. This responsibility also includes the prevention of human errors. Human errors do not excuse APG.

From the above, the AP concludes that APG, as the data controller concerning the aforementioned three data subjects, has acted in violation of Article 17, paragraph 1, in conjunction with Article 12, paragraph 3.

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member, of the GDPR, by not complying without unreasonable delay, at least in any case not within one month after receiving the request for data erasure from the data subjects.

4. Fine

4.1 Introduction

In the event of a violation of Article 17, paragraph 1, in conjunction with Article 12, paragraph 3, of the GDPR, as established here, the supervisory authority is offered a choice in which all corrective measures available to it must be considered, as well as the imposition of a monetary fine.

View of APG

APG is primarily of the opinion that there is no reason for enforcement and, subsidiarily, that there is no reason for the imposition of a measure or an administrative fine. APG also believes that, insofar as the AP intends to impose an administrative fine, the circumstances of this specific case warrant a reduction of the fine to zero. APG has not disputed that it did not (adequately) comply with the requests of three data subjects and is aware that this may be regarded as a violation. However, APG believes that this case represents an exceptional situation in which enforcement action is so disproportionate in relation to the interests to be served that action should be refrained from. According to APG, effective protection of the rights of data subjects is not at stake. These are incidents that are solely the result of human error. APG has implemented adequate procedures for handling requests and had even implemented policies for the situation at hand (where a data subject does not send a request, as follows from the privacy statement, to the privacy inbox, but directs it to a 'regular' employee). APG has explained what activities it has undertaken to comply with the GDPR rules and believes that its then-current policy met the requirements imposed by the GDPR. In short, APG has done everything possible to prevent a situation like this. Nevertheless, in response to the first letter from the AP, APG immediately reviewed its internal processes to see at which point these could be further improved. Enforcement by the AP in this specific situation would therefore not lead to more or better protection of the rights of data subjects. To the extent that the AP intends to impose an administrative fine, APG addresses the individual factors of Article 7 of the AP's Policy Rules of February 19, 2019, regarding the determination of the amount of administrative fines in its view.

Considerations of the AP

The AP notes the following in this regard. Data subjects have the right to have their personal data erased without unreasonable delay and to not have it further processed when the personal data are no longer necessary for the purposes for which they were collected or otherwise processed. This right is inextricably linked to the control over the processing of personal data and enables the stakeholder to ascertain whether personal data are processed lawfully.

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processed unlawfully and, among other things, to request compensation for unlawful processing.²⁵ APG did not respond to the request of three individuals to remove their data from APG's database. It was only after intervention by the AP that APG proceeded to delete the relevant data. Now that a violation has been established in three cases, which APG has not disputed, the AP does not follow APG in its position that there is no reason for enforcement.

The AP sees reason in this case to exercise its authority to impose a fine based on Article 58, second paragraph, introductory phrase and under i, and Article 83, fourth paragraph, of the GDPR, read in conjunction with Article 14, third paragraph, of the UAVG.

According to Article 83, fifth paragraph, under b, of the GDPR, violations of Articles 12 and 17 of the GDPR are subject to administrative fines of up to €20,000,000 or, for an enterprise, up to 4% of the total worldwide annual turnover in the preceding financial year, whichever is higher.

4.2 Fine Policy Rules Authority Personal Data 2019 (Fine Policy Rules 2019)

The AP has established the Fine Policy Rules 2019 regarding the implementation of the aforementioned authority to impose an administrative fine, including determining the amount thereof.

According to Article 2, under 2.2, of the Fine Policy Rules 2019, the provisions regarding violations for which the AP can impose an administrative fine of up to €20,000,000 or, for an enterprise, up to 4% of the total worldwide annual turnover in the preceding financial year, whichever is higher, are classified in Annex 2 into category I, category II, category III, or category IV. In Annex 2, the violation of Article 12, third paragraph, of the GDPR is classified in category II.

According to Article 2.3 of the Fine Policy Rules 2019, the AP establishes the base fine for violations for which a statutory maximum fine of €20,000,000 applies within the fine bandwidths specified in that article. For violations in category II of Annex 2 of the Fine Policy Rules 2019, a fine bandwidth between €120,000 and €500,000 applies, with a base fine of €310,000.

According to Article 6 of the Fine Policy Rules 2019, the AP determines the amount of the fine by adjusting the base fine upwards (up to the maximum of the bandwidth of the fine category linked to a violation) or downwards (down to the minimum of that bandwidth). The base fine is increased or decreased depending on the extent to which the factors mentioned in Article 7 of the Fine Policy Rules 2019 warrant such adjustment.

According to Article 7 of the Fine Policy Rules 2019, the AP takes into account, without prejudice to Articles 3:4 and 5:46 of the General Administrative Law Act (Awb), the following factors derived from Article 83, second paragraph, of the GDPR, as mentioned in the Policy Rules under a to k:

25 See also Recital 7 of the GDPR.

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- a. the nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing in question as well as the number of affected data subjects and the extent of the damage they have suffered;
- b. the intentional or negligent nature of the infringement;
- c. the measures taken by the data controller [...] to mitigate the damage suffered by data subjects;
- d. the degree to which the data controller [...] is responsible, considering the technical and organizational measures it has implemented in accordance with Articles 25 and 32 of the GDPR;
- e. previous relevant infringements by the data controller [...];
- f. the degree to which there has been cooperation with the supervisory authority to remedy the infringement and mitigate its possible negative consequences;
- g. the categories of personal data affected by the infringement;
- h. the manner in which the supervisory authority became aware of the infringement, in particular whether, and if so to what extent, the data controller [...] reported the infringement;
- i. compliance with the measures mentioned in Article 58(2) of the GDPR, insofar as those measures have previously been taken regarding the data controller [...] in question concerning the same matter;
- j. adherence to approved codes of conduct in accordance with Article 40 of the GDPR or approved certification mechanisms in accordance with Article 42 of the GDPR; and
- k. any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial gains made or losses avoided, which may or may not directly result from the infringement.

Pursuant to Article 8.1 of the 2019 Fine Policy Rules, the AP may, if the fine category determined for the infringement does not allow for appropriate punishment in the specific case, apply the fine bandwidth of the next higher category or the fine bandwidth of the next lower category when determining the amount of the fine.

According to Article 9 of the 2019 Fine Policy Rules, the AP takes into account the financial

circumstances in which the offender finds themselves when determining the fine. In the case of reduced or insufficient financial capacity of the offender, the AP may further reduce the fine to be imposed if, after applying Article 8.1 of the policy rules, determining a fine within the fine bandwidth of the next lower category would nonetheless lead to an disproportionately high fine in its opinion.

4.3 Amount of the Fine

In the following, the AP, taking into account the statements made by APG in its opinion, addresses the factors mentioned in Article 7 of the 2019 Fine Policy Rules, to the extent relevant here.

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****4.3.1 Nature, severity, and duration of the infringement****

Pursuant to Article 7, introductory phrase and under a, of the Fine Policy Rules 2019, the AP takes into account the nature, severity, and duration of the infringement.

The protection of natural persons in the processing of personal data is a fundamental right. According to Article 8, first paragraph, of the Charter of Fundamental Rights of the European Union and Article 16, first paragraph, of the Treaty on the Functioning of the European Union (TFEU), everyone has the right to the protection of their personal data. The principles and rules regarding the protection of natural persons in the processing of their personal data must be in accordance with their fundamental rights and freedoms, particularly with their right to the protection of personal data. The GDPR aims to contribute to the establishment of a space of freedom, security, and justice, and of an economic union, as well as to economic and social progress, the strengthening and convergence of economies within the internal market, and the well-being of natural persons. The processing of personal data must serve humanity. The right to the protection of personal data is not absolute but must be considered in relation to its function in society and must be weighed against other fundamental rights in accordance with the principle of proportionality. Every processing of personal data must be carried out properly and lawfully. The personal data must be adequate and relevant and limited to what is necessary for the purposes for which they are processed. Personal data must be processed in a manner that ensures appropriate security and confidentiality of that data, also to prevent unauthorized access to or unauthorized use of personal data and the equipment used for processing. The GDPR aims for effective protection of personal data.

The AP considers that the infringement concerns several data subjects, whose personal data (initially) were processed with the aim of providing them with suitable job vacancies, and that APG, after having previously quarantined the data of the data subjects so that these individuals would no longer be approached pending the investigation by the AP, complied with their request on September 11, 2019. There are no special categories of personal data involved. In the case of the three data subjects, the policy prescribed by APG was not followed, and they were only able to enforce their rights by filing a complaint. The infringements resulted in the three data subjects being approached by APG for job vacancies despite their request for data deletion. While the adverse effects for the data subjects may have been limited, this does not detract from the AP's view that the identified violation is serious, especially since it occurred three times and manifested itself under different labels of APG. The AP sees no reason to increase or decrease the basic fine amount of €310,000 based on the above.

****4.3.2 Intentional or negligent nature of the infringement (blameworthiness)****

Pursuant to Article 5:46, second paragraph, of the General Administrative Law Act (Awb), the AP takes into account the degree to which the infringement can be attributed to the offender when imposing an administrative fine. Since this concerns a

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In the case of an infringement, it is not required to demonstrate intent for the imposition of an administrative fine in accordance with established case law²⁶, and the AP may assume culpability if the perpetration is established.²⁷

As indicated by APG, it has included in its privacy statement that individuals wishing to unsubscribe can contact APG via the privacy email address. The AP considers that the three individuals directed their request to the recruiter with whom they were in contact at that time and not to the aforementioned email address. For this situation, APG has prepared an instruction for its employees, but this was not applied by them in these three cases. The AP deems this blameworthy.

4.3.3 Proportionality

Finally, the AP assesses based on Articles 3:4 and 5:46 of the General Administrative Law Act (Awb) (principle of proportionality) whether the application of its policy for determining the amount of the fine, given the circumstances of the specific case, does not lead to an disproportionate outcome. According to the Fine Policy Rules 2019, applying the principle of proportionality means that the AP takes into account the financial circumstances in which the offender finds themselves when determining the fine.

In its response dated August 21, 2019, to the information request from the AP, APG indicated that it had processed more than 650 requests for unsubscription since May 2018. The AP considers it plausible that these are three incidents that resulted from human error. It is also deemed important that APG had already provided for policy regarding requests of this nature. Firstly, APG has a privacy inbox available where individuals can submit their requests in the area of privacy. Additionally, it has extensively described in its "GDPR Processes for Recruiters 2018" how to act in response to requests and complaints under the GDPR that the recruiter and the manager receive via their personal inbox or by phone. This also includes instructions on how to delete data from the database. After becoming aware of the complaints, APG saw reason to tighten its policy as outlined above to prevent situations like this from occurring as much as possible in the future.

Considering all circumstances of this case, the AP deems a fine of €310,000,- to be disproportionately high and a fine of €6,000 to be appropriate and warranted.

²⁶ See CBb October 29, 2014, ECLI:NL:CBB:2014:395, para. 3.5.4, CBb September 2, 2015, ECLI:NL:CBB:2015:312, para. 3.7, and CBb March 7, 2016, ECLI:NL:CBB:2016:54, para. 8.3, ABRvS August 29, 2018, ECLI:NL:RVS:2018:2879, para. 3.2, and ABRvS December 5, 2018, ECLI:NL:RVS:2018:3969, para. 5.1.

²⁷ Parliamentary Papers II 2003/04, 29702, no. 3, p. 134.

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5. Decision

Fine

The AP imposes an administrative fine on APG for violation of Article 17, paragraph 1, in conjunction with Article 12, paragraph 3, of the GDPR, in the amount of €6,000 (say: six thousand euros).²⁸

Yours sincerely,

Authority for Personal Data,

ir. M.J. Verdier

Vice Chair

Remedies clause

If you disagree with this decision, you can submit a notice of objection digitally or on paper to the Authority for Personal Data within six weeks of the date of dispatch of the decision. Pursuant to Article 38 of the UAVG, the submission of a notice of objection suspends the effect of the decision to impose the administrative fine. For submitting a digital objection, see www.autoriteitpersoonsgegevens.nl, under the heading "Making an objection against a decision," at the bottom of the page under the heading "Contact with the Authority for Personal Data." The address for submitting on paper is: Authority for Personal Data, P.O. Box 93374, 2509 AJ The Hague.

Please indicate on the envelope 'Awb-objection' and title your letter 'notice of objection.'

Your notice of objection should at least include:

- your name and address;
- the date of your notice of objection;
- the reference mentioned in this letter (case number); or attach a copy of this decision;
- the reason(s) why you disagree with this decision;
- your signature.

28 The AP will refer the aforementioned claim to the Central Judicial Collection Agency (CJIB).